

Opinion of the Court

maliciously, and without any reasonable or probable cause, commits a wrongful act; and if the accused is thereby prejudiced, either in his person or property, the injury and loss so sustained constitute the proper foundation of an action to recover compensation”); *Dinsman v. Wilkes*, 12 How. 390, 402 (1852) (no immunity “where a party had maliciously, and without probable cause, procured the plaintiff to be indicted or arrested for an offence of which he was not guilty”).

In the decades after the adoption of the 1871 Civil Rights Act, however, the prosecutorial function was increasingly assumed by public officials, and common-law courts held that public prosecutors, unlike their private predecessors, were absolutely immune from the types of tort claims that an aggrieved or vengeful criminal defendant was most likely to assert, namely, claims for malicious prosecution or defamation. See *Imbler*, 424 U. S., at 441–442 (White, J., concurring in judgment); *Kalina*, *supra*, at 124, n. 11 (noting that cases “decided after 1871 . . . granted a broader immunity to public prosecutors than had been available in malicious prosecution actions against private persons who brought prosecutions at early common law”); see also *Burns*, *supra*, at 505 (SCALIA, J., concurring in judgment in part and dissenting in part) (noting that the “common-law tradition of prosecutorial immunity . . . developed much later than 1871”).

This adaptation of prosecutorial immunity accommodated the special needs of public, as opposed to private, prosecutors. Because the daily function of a public prosecutor is to bring criminal charges, tort claims against public prosecutors “could be expected with some frequency, for a defendant often will transform his resentment at being prosecuted into the ascription of improper and malicious actions to the State’s advocate.” *Imbler*, 424 U. S., at 425. Such “harassment by unfounded litigation would cause a deflection of the prosecutor’s energies from his public duties,” and would result in a severe interference with the administration of an important public office. *Id.*, at 423. Constant vulnerability to vexatious litigation would give rise to the “possibility that